

23STCV15578 23STCV15578

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-08-05

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Case Number: 23STCV15578 Hearing Date: August 5, 2026 Dept: 224

Interinsurance Exchange of the Automobile Club v. Elvis James Campiz et al.,

TENTATIVE RULING

The OSC Re Default Judgment is CONTINUED TO December 8, 2026, at 9:00 a.m. for Plaintiff to remedy the deficiencies. Plaintiff shall submit an updated default judgment package 20 days before the hearing.

The Court also sets an Order to Show Cause Re DISMISSAL for Failure to file a Proper Default Judgment Package and Obtain A Default Judgment Within 3 Years CCP 583.420(a)(2)(A): CRC 3.110(h) for December 8, 2026 at 9:00 a.m.. Given the highly deficient and irregular filings in this package, the Court intends to dismiss the action if care is not taken to submit proper evidence and materials in support of the significant remedies Plaintiff seeks on default.

Declarations in response to the Orders to Show Cause are due five court days before the hearings.

ANALYSIS

FACTS OF THE CASE:

This is an insurance subrogation action. Plaintiff's Insured has assigned to Plaintiff his/her right to collect the deductible paid by Plaintiff's Insured. Plaintiff and Plaintiff's Insured, have paid the sum of \$52,000.00; and Plaintiff is entitled to recover from Defendant, and each of them, the sum of \$52,000.00, interest, and costs.

PROOF OF SERVICE/DEFAULT:

default entered 3/17/2026:

PRINCIPAL REQUESTED: \$ 52,000.00

INTEREST: \$ 7,215.89

COSTS: \$ 485.00

TOTAL: \$ 59,700.89

DISCUSSION

Plaintiff did not file an amended complaint after default was entered, and Defendant did not appear before default was entered.

There is no pending motion to vacate default.

DOE defendants were dismissed. A CIV-110 request for dismissal of Does 1 through 10, without prejudice, was filed and entered on 07/07/2026.

A CIV-100 form was used to request court judgment, and the declaration of nonmilitary status at item 8 is filled out. A separate declaration of counsel as to nonmilitary status was also submitted, attaching a DMDC SCRA status report dated April 3, 2026 (Certificate ID ZK7TDMLDZ24HZQL) showing Defendant is not on active duty. The status date postdates entry of default and predates the requested judgment.

A memorandum of costs is verified on the CIV-100 at item 7.

Three declarations under penalty of perjury support the request: a CCP § 585(d) declaration in lieu of live testimony from Tara Murray, custodian of records and subrogation examiner; a declaration of counsel in support of prejudgment interest; and a declaration of counsel as to nonmilitary status.

A proposed judgment was submitted on a JUD-100 form. Its figures match the CIV-100 exactly, and the line items sum correctly to the stated total.

The amounts requested in the Complaint and Request for Default are aligned. The Complaint demands \$52,000.00 on its face, and the principal judgment does not exceed that sum. Costs and prejudgment interest are properly requested in the Complaint, in addition to the amount demanded.

The two indemnity checks in Exhibit B sum precisely to the \$52,000.00 claimed and are shown as cleared, so the fact and amount of Plaintiff's payment are documented.

PROBLEMS:

There is no declaration from the insured (i.e., the percipient witness) setting forth the facts establishing the liability and proper identification of the defendant(s). There is no declaration from Sonia Lopez. The only substantive declaration is from Tara Murray, the subrogation examiner, who has no personal knowledge of the collision.

The amount requested is not sufficiently supported by documentary evidence. The subrogated insurer recovers only what its insured was legally entitled to recover from the tortfeasor, so Plaintiff must show the settlement it paid reflected its insured's actual damages. The medical billing in Exhibit C totals roughly \$6,287: a Kaiser hospital bill of \$3,197.80 for a same-day emergency room visit with chest and wrist x-rays and an EKG, a Kaiser physician bill of \$69.00, and a chiropractic ledger of \$3,020.00 for manipulation and modalities from July through October 2020. Substantially all of that was paid or adjusted by

the insured's health coverage, leaving a \$100.00 balance. Nothing in the package explains the roughly \$45,700 gap between documented specials and the amount paid. The only support is the examiner's conclusory opinion at paragraph 11 that "\$52,000.00 is reasonable.

Relatedly, the payment log shows the \$50,000.00 check was payable jointly to the insured's counsel, Sonia Lopez, Joseph Lopez, Rawlings, and the Department of Health Care Services.

Joseph Lopez is not identified anywhere in the Complaint or the declarations. If part of the \$52,000.00 was paid on behalf of a second claimant, the declaration's statement that the full sum was paid "for bodily injuries sustained by the INSURED" is inaccurate, and Plaintiff's subrogation showing as to that portion is incomplete.

The policy number in the declaration does not match the claim file. Paragraph 2 of the § 585(d) declaration identifies the policy as CAA148408533. Exhibit B identifies the policy for this claim as CAA122741989, and the Traffic Collision Report lists Sonia Lopez's AAA policy as CAA122741989. No copy of the policy is attached, so the discrepancy is unexplained.

DISPOSITION:

The OSC is CONTINUED TO December 8, 2026, at 9:00 a.m. for Plaintiff to remedy the deficiencies. Plaintiff shall submit an updated default judgment package 20 days before the hearing.

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Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.